

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Aminul Islam

Death Reference No.113 of 2017

The State

... Petitioner

-Versus-

Md. Mahfuz

... Respondent/condemn prisoner

With

Criminal Appeal No.8440 of 2023

(Arising out of Jail Appeal No.347 of 2017)

Md. Mahfuz

... Convict-Accused-Appellant

-Versus-

The State

... Respondent

Mr. Sujit Chatterjee, D.A.G.with
Ms. Farhana Afroze Runa, A.A.G.
Mr. Md. Abdul Aziz Masud, A.A.G.
Mr. Md. Shamim Khan, A.A.G.
... For the State.

Mr. Mohammad Shishir Manir with
Mr. Mohammad Saddam Hosen,
Mr. Abdullah Sadiq,
Mr. Mizanul Haque,
Mr. Mohammad Noab Ali,
Mr. G.M. Mozahidur Rahman and
Mr. Mohammad Sazzad Saroar, Advocates

... For the Convict-Accused-Appellant
Md. Mahfuz in Criminal Appeal No.8440 of 2023.

Ms. Shahana Sayed, State Defence Lawyer

... For the convict accused Md. Mahfuz.

Heard on 29.11.2023 and Judgment on 06.12.2023.

S M Kuddus Zaman,J:

This Death Reference under section 374 of the Code of Criminal Procedure, 1889 has been submitted by the learned Session Judge, Narayangonj for confirmation of sentence of death imposed upon condemned accused Md. Mahfuz on 07.08.2017 in Session Case No.1001 of 2016 arising out of Naryangonj Sadar Model P.S. Case No.22 dated 17.01.2016 corresponding to G.R. Case No.22 of 2016 under Section 302 of the Penal Code, 1860.

Being aggrieved by above judgment and order of conviction and sentence dated 07.08.2017 passed by the learned Session Judge, Naryangonj in Session Case No.1001 of 2016 condemned accused Md. Mahfuz preferred Jail Appeal No.347 of 2017. Above Jail Appeal No.347 of 2017 was at the instance of the appellant subsequently converted to Criminal Appeal No.8440 of 2023.

Above Death Reference No.113 of 2017 and Criminal Appeal No.8440 of 2023 having arisen out of the identical judgment and order of conviction and sentence dated 07.08.2017 passed by the learned Session Judge. Narayanganj in Session Case No.1001 of 2016 arising out of Narayanganj Sadar Model P.S. Case No. 22 dated 17.01.2016 corresponding to G.R. Case No.22 of 2016 under Section 302 of the Penal Code, 1860 and involved identical questions of facts and laws above Death Reference and Criminal Appeal are heard together and being disposed of by this single judgment.

Facts in short are that PW1 Md. Shafiqul Islam lodged an ejahar on 17.01.2016 at 8.15 A.M. alleging that he alongwith his wife Taslima (28), son Shanto (10), daughter Sumaiya (4), younger brother Sharif (22), his wife victim Lamiya (19) and brother-in-law Mosharaf (22) were residing in the ground floor apartment of the fifth storied building at No.2 Baburail, Narayanganj. He was working as a driver of a private company at Dhaka and used to visit his above family on every Thursday evening. On 16.01.2016 at 8.40 P.M. his mother PW21 Amena and younger brother PW9 Sharif informed him

over mobile phone that unknown criminals had murdered his wife, two children, brother-in-law Mosharaf and wife of PW9 sharif, namely Lamiya in above flat. On 15.01.2016 at 10.30 P.M. he last talked with his wife over mobile phone and PW9 Sharif alongwith PW21 Amena came to the occurrence house on 16.01.2016 at 8.20 P.M. and found above flat locked from outside. PW9 Sharif gave mobile phone calls to victim Taslima, victim Lamiya and victim Mosharaf but found above mobile phones switched off.

PW9 Sharif broke the lock of the flat and discovered the dead bodies of his wife Lamiya, Shanto and Sumaiya on the floor of Room No.2 and the dead body of Mosharaf on the cot and dead body of victim Taslima was lying on the floor of room No.1. There were marks of injuries on the forehead and back side of the head of victim Taslima caused by a blunt weapon and her throat was tied with a salowar. There were several marks of injury on head and forehead of victim Mosharaf caused by blunt weapon and his throat was tied with a shirt. The throat of victim Shanto was tied with a sweater and that of victim Sumaiya with a salower. Besides

there were marks of injuries on the forehead and surrounding areas of victim Sumaiya caused by blunt weapon. There were several marks of injuries on the head of victim Lamiya caused by blunt weapon and her throat was tied with a salower. His wife Taslima owed about Tk.12,00,000/-(twelve lac) to Nazma and Shahjahan and above creditors created pressure on victim Taslima for return of above money. Victim Mosharaf also owed money to several persons who used to visit his house and created pressure for return of money. During their stay at Dhaka his nephew Mahfuz sexually advanced to victim Lamiya and for above cause they shifted to Naryangonj leaving Mahfuz at Dhaka. Above Mahfuz subsequently came to Narayangonj and took a job in the factory of victim Mosharaf and he frequently visited the occurrence flat during absence of PW9 Sharif and repeated above behaviour to Lamiya. Victim Lamiya was dissatisfied with above behavior of Mahfuz and she companied against Mahfuz to PW9 Sharif and victim Taslima.

He suspects that above persons might have committed above murders of his wife, two children, brother-in-law

Mosharaf and Lamiya, any time during 10.30 P.M. of 15.01.2016 to 8.20 A.M. of 16.01.2016 by blunt weapon and strangulation.

PW22 Hamidul, Sub-Inspector rushed to the occurrence flat on 16.01.2016 and prepared inquest reports of the dead bodies of victim Sumaiya (4), Lamiya (19), Shanto (10), Taslima (28) and Mosharaf (22) and forwarded above dead bodies for post-mortem examination.

The investigation of the case was assigned to above PW22 Hamidul who in course of investigation visited the place of occurrence, prepared a sketch map of the same along with an index thereof and seized alamats and recorded statement of seven prosecution witnesses under Section 161 of the Code of Criminal Procedure, 1898.

The investigation of the case was transferred to Mr. Abul Khair, Inspector of Detective Branch who arrested accused Md. Mahfuz on 18.01.2016 and produced him to PW16 Saiduzzaman a Judicial Magistrate on 21.01.2016 for recording his confession under Section 164 of the Code of Criminal Procedure. Pursuant to confession of above accused he

recovered the key of the occurrence apartment from the water tank and seized the same. He also produced five prosecution witnesses to the Judicial Magistrate for recording their statement under Section 164 of the Code of Criminal Procedure and seized alams by two separate seizure lists. In above investigation offence punishable under Section 302 of the Penal Code, 1860 having prima facie proved against accused Md. Mahfuz is submitted charge sheet No.112 dated 05.04.2016 against him.

At trial prosecution examined 22 witnesses and tendered one and the defence cross examined 20 prosecution witnesses. The cross examination of PW8 Romija Begum, PW14 Nayan Hossain and PW11 Dulal Miah were declined by the defence. Documents and materials produced and proved by the prosecution were marked as Exhibit Nos.1-16(1) and Material Exhibit Nos.I, II, III, IV, VI and V respectively.

On conclusion of prosecution evidence accused Md. Mahfuz was examined under Section 342 of the Code of Criminal Procedure who reiterated his claim of not guilty and refused to examine any defence witness.

On consideration of the facts and circumstances of the case and evidence on record the learned Session Judge convicted Md. Mahfuz under Section 302 of the Penal Code, 1860 for commission of murder of victim Sumaiya (4), Lamiya (19), Shanto (10), Taslima (28) and Mosharaf (22) and sentenced him to death.

As mentioned above to bring home the charge level against the accused Md. Mahfuz under Section 302 of the Penal Code, 1860 the prosecution has examined 22 witnesses and tendered one. The defence cross examined all prosecution witnesses excepting PW8 Ramiza, PW11 Dulal and PW14 Nayon Hossain whose cross examinations were declined by the defence.

PW1 Md. Shafiqul Islam is the informant of this case, husband of victim Taslima and father of victim Sumaiya and Shanto. He stated that he along with his wife, two children, brother-in-law Mosharaf, younger brother Sharif and his wife Lamiya used to live in the occurrence flat. Accused Mahfuz is his nephew. On 16.01.2016 at 8.30/8.40 P.M. his mother PW21 Amena and younger brother PW9 Sharif informed him over

mobile phone that his wife, two children and Lamiya were murdered by accused Mahfuz and he fled away after locking the door from outside. He rushed to the occurrence flat and saw above dead bodies. He found three dead bodies in his room and two dead bodies in the room of PW9 Sharif. He found marks of injuries on the head and forehead of Taslima and her throat was tied with a shirt. He found the throat of victim Shanto was fastened with a sweater and that of victim Sumaiya with a salower. He noticed marks of injuries caused by a blunt weapon on the forehead of his son and daughter. There were several marks of injuries on the head and other areas of the body of victim Lamiya and her throat was tied with a salower. He suspected Nazma and some other people who gave loan to his wife. He also suspected his nephew Mahfuz against whom there were allegations of sexual exploitation of victim Lamiya. Subsequently accused Mahfuz came to Narayangonj and took a job in the factory of victim Mosharaf. Accused Mahfuz frequently visited the occurrence flat during his absence and repeated his bad behavior with Lamiya. Lamiya was dissatisfied with above behavior of

accused Mahfuz and disclosed and the same to all. Due to above causes he suspected accused Mahfuz and stating above facts he lodged ejahar of this case. The witness proved the ejahar and his signature on the same which was marked as Exhibit Nos.1 and 1/1 respectively. Police performed inquest of the dead bodies of above mentioned five victims in his presence and prepared reports and he gave signatures on those reports as a witness. The witness proved his signatures on the five inquest reports which were marked as Exhibit Nos.2(1), 3(1), 4(1), 5(1) and 6(1) respectively. On 23.01.2016 police seized one steel key, one Patta Putta (পাটাপোতা), one bed sheet, one mattress, and a Sony TV set by dint of a seizure list and he gave a signature on the same as a witness. The witness proved his signature on above seizure list and identified above mentioned articles which were marked as Exhibit Nos.7(1) and Material Exhibit Nos.I, II, III, IV and V respectively. In cross examination he stated that before he put his signature on the ejahar the same was read over to him. He used to stay and work in Dhaka and stay in the occurrence flat during Thursday evening to Saturday morning. His younger

brother Sharif first informed him about the occurrence. There was a collapsible gate of the occurrence building but the same remained open for all the time. In the occurrence flat there were only two rooms and from the kitchen the dwelling rooms could be seen. He further stated that they do not have any paternal property. He denied that he falsely suspected accused Mahfuz and gave false evidence.

PW2 Md. Toslim is the tenant of a flat adjacent to the occurrence flat. He stated that five persons were murdered in the occurrence flat by accused Mahfuz who is the nephew of the Informant. Police seized one TV, laptop, hand gloves, note book from the occurrence flat in his presence by a seizure list and he gave signature on the same as a witness. The witness proved his signature on above seizure list which was marked as Exhibit No.8(1). In cross examination he stated that the occurrence building was a fifth storied building and there were three flats in the ground floor. In one flat the informant resided and he resided in another flat and Poli Akther lived in the third flat. He did not see the occurrence of murder by

accused Mahfuz. But he heard of the same from police and news media.

PW3 Md. Touhid Hossain stated that in the occurrence flat Lamiya, Mosharaf, Shanto, Somaiya and another person were murdered. He heard from police and media that accused Mahfuz committed above murders. Police seized pant, shirt, semis and kamies from the occurrence flat in his presence by a seizure list and he gave signature in the above seizure list. Police prepared inquest reports of above mentioned five dead bodies and he gave signatures on five inquest reports as a witness. The witness proved his signatures on the above seizure lists which were marked as Exhibit Nos.9(1) - 10(1) and his five signatures on five inquest reports which were marked as Exhibit No.2(2)-6(2) respectively. In cross examination he stated that he lived in one flat and the informant lived in another flat.

PW4 Md. Roni is another witness of the inquest report and the seizure list. He stated that he is a tenant of the third floor flat of the occurrence building. He heard that accused Mahfuz had murdered five persons in the occurrence flat and

fled away. Accused Mahfuz is the nephew of the informant. Police prepared five inquest reports of above five dead bodies in his presence and he gave signatures on those reports as a witness. The witness proved his signatures on five inquest reports which were marked as Exhibit No.2(3)- 6(3). He further stated that police seized some wearing apparels from the occurrence flat by a seizure list and he gave two signatures on above seizure list. The witness proved his signatures on above seizure list which were marked as Exhibit Nos.9(2) and 10(2) respectively. In cross examination he stated that he does not know the names of the tenants of the ground floor flats of the occurrence building.

PW5 Md. Shahjada stated that on 16.01.2016 at 7.30-8.00 P.M. his father informed him over mobile telephone that five persons including his cousin brother have been murdered. He rushed to occurrence house and police interrogated him and showed him the dead bodies. Accused Mahfuz confessed to Magistrate on 21.01.2016 that he committed above murders. In cross examination he stated that on 16.01.2016 he was taken to police station and he stays two days there. Accused Mahfuz is

the nephew of the informant and he met with accused Mahfuz in the police station. Police did not subject him or accused Mahfuz to torture.

PW6 Md. Delowar Hossain stated that all five victims are his relatives. He went to the occurrence flat at 8.00 P.M. and saw five dead bodies lying on the floor. After 3/4 days he heard that accused Mahfuz had an illicit relation with victim Lamiya but having failed to do bad things accused Mahfuz committed above murders. In cross examination he stated that he does not know when victim Taslima and her family came to Narayanganj. He saw accused Mahfuz on 16 January at 8.30 P.M.

PW7 Morsheda Begum is the mother of victim Taslima and Mosharaf who stated that accused Mahfuz murdered her son Mosharaf, daughter Taslima, grand children Santo and Sumaiya and Lamiya and he saw their dead bodies in the occurrence flat at 8.00 P.M. He also saw accused Mahfuz in the occurrence flat. Police arrested Mahfuz on 18.01.2016 and he made confessed in front of thousands of people. In cross

examination she stated that on the night of the occurrence she was not present in Narayangonj.

PW8 Ramiza Begum was tendered by the prosecution whose cross examination was declined by the defence.

PW9 Md. Sharif is the brother of the informant and husband of victim Lamiya who was a resident of the occurrence flat. He stated that on 14.01.2016 he went to their village home and returned to Dhaka on 16.01.216 and found the main door of the flat was locked from outside. He gave mobile telephone calls to his wife Lamiya, victim Taslima and Mosharaf but none responded. He went to the factory of victim Mosharaf and came to know that Mosharaf did not come to the factory yesterday and his phone was switched off. He then went to the owner of the occurrence building and obtained permission to break the lock. He with the aid of accused Mahfuz and others broke the lock and in one room found the dead body of victim Taslima on the floor and the dead body of victim Mosharaf on the cot and the dead bodies of Shanto, Sumaiya and Lamiya were found on the floor of the other room. On 18.01.2016 police arrested accused Mahfuz and

he came to know from news media that accused Mahfuz committed murders of above five victims. In cross examination he stated that in the occurrence flat there were two rooms. He and his wife lived in the first room and in the second room victim Taslima lived with her husband and children. Accused Mahfuz used to visit the occurrence flat at some times. He went to the village home to attend the funeral of his grandmother. He denied that accused Mahfuz did not confess to have committed above murders to him and to the people and he was giving false evidence against accused Mahfuz.

PW10 Md. Ismail Hossain is the owner of the occurrence building who stated that informant was his tenant who lived in the occurrence flat alongwith his younger brother, two women Taslima and the other one whose name he could not recollect and two children Shanto and the other. Mosharaf used to reside in his factory which is adjacent to the occurrence building but visited the occurrence flat frequently. He went to the occurrence flat after the arrival of police and police seized some articles in his presence by two separate

seizure lists and he gave signature on those as a witness. The witness proved his signatures on two seizure lists which were marked as Exhibit Nos.9(3)-10(3). Subsequently he came to know that accused Mahfuz committed murders of above five victims. In cross examination he stated that he heard from the news media that accused Mahfuz committed above murders.

PW11 Constable-387 Md. Dulal Miah is the witness to five inquest reports of the dead bodies of above mentioned five victims. The witness proved his five signatures in five inquest reports which were marked as Exhibit Nos.2(4) - 4(4) and 5(4) - 6(4) and 11(1) - 15(1) respectively. He stated that he carried above five dead bodies to the morgue of the Victoria Hospital for post-mortem examination. The cross examination of this witness was declined by the defence.

PW12 Md. Nazmul Islam is an employee of the factory adjacent to the occurrence building. He stated that in his presence police recovered a steel key, one blanket and a Putta (পোতা). Above key was recovered from the water tank. Two blood stained bed sheets and a pillow were also seized. He gave signature on above seizure list. The witness proved his

signature on above seizure lists which was marked as Exhibit No.7(2). On 20.01.2016 police seized the trouser of accused Mahfuz by a seizure list and he gave signature on the same. The witness proved his signature on above seizure list which was marked as Exhibit No.16(1). On Friday night accused Mahfuz was not present in the factory although he used to sleep in above factory. On Saturday at 7.00-7.30 A.M. accused Mahfuz came to the gate of the factory and PW15 Lablu opened the gate. Accused Mahfuz went to take shower which made them suspicious as to why in the winter morning Mahfuz was doing so. After having shower accused Mahfuz ate breakfast with PW15 Lablu and then slept. His eyes were redish and look was furious and he said Zahor and Asor prayers although he did not say prayers in the past. Accused Mahfuz took a hexo blade from the factory and went to the occurrence house to break the lock. After a while they heard about the occurrence of murders and rushed to the occurrence flat and saw two dead bodies in one room and three dead bodies in the other room. In cross examination he denied that no occurrence occurred according to his description nor he

saw accused Mahfuz in the condition he has stated. Accused Mahfuz confessed to have committed above murders to him and to the Magistrate.

PW 13 Md. Saiful Islam stated that on 16.01.2016 at 09.15 P.M. he went to the factory of Mosharaf and found him absent. He gave a mobile phone call but found his mobile phone switched off. At 09.00 P.M. he heard from an employee that victim Mosharaf along with his sister and her children all five persons had been murdered. He heard that accused Mahfuz committed above murders. He rushed to the occurrence building but police did not give him entry to the occurrence flat. In cross examination he stated that he did not say to the police that accused Mahfuz committed above murders.

PW14 Md. Noyon Hossain is a labor of the factory of victim Mosharaf who stated that there were 12 labors in above factory and victim Mosharaf did not come to the factory on 16.01.2016 and his mobile phone was found switched off. In the evening they came to know that victim Mosharaf had been murdered and accused Mahfuz was not present in the factory

in the night (Friday night). Accused Mahfuz came to the factory in the Saturday morning. He lastly stated that accused Mahfuz used to work in above factory with them. The cross examination of the witness was declined by the defence.

PW15 Md. Lavlu Miah stated that the occurrence of murders took place on 16.01.2016 Friday night. Accused Mahfuz was not present in the factory in Friday night and he came to the factory on Saturday morning at 7.00/7.30 A.M. Accused Mahfuz pushed the gate of the factory and he opened the same. Mahfuz wanted a soap to him and he asked him why in the winter morning he wanted to take bath. Mahfuz replied that he had problem and after taking bath he ate breakfast. Accused Mahfuz said prayers although he was never seen saying prayers before. Accused Mahfuz was in a restive mood and in the evening he took a hexo blade from the factory and went to the occurrence flat for breaking the lock. He went to the occurrence flat and saw the dead bodies. Police seized one jeans pant and one T-shirt from their factory by a seizure list and he gave signature in above seizure list as a witness. The witness proved his signature on above seizure

list which was marked as Exhibit No.16(2). The witness lastly stated that accused Mahfuz used to work and sleep with them jointly in the factory. In cross examination he stated that he reported to the police station and police obtained his signature on two sheets of papers. He denied that accused Mahfuz did not take a soap from him and he was not in a restive mood.

PW16 Saifuzzaman Sharif is the Judicial Magistrate who recorded the confession of accused Mahfuz under Section 164 of the Code of Criminal Procedure on 21.01.2016. He stated that accused Mahfuz was produced before him at 10.00 A.M. and he recorded his confession on compliance of all legal requirements. The witness proved his six signatures and eight signatures of accused Mahfuz in above confession which were marked as Exhibit No.20 - 20(1) - 20(6) respectively. In cross examination he stated that accused Mahfuz was arrested on 18.01.2016 at 2.00 A.M. and he was taken to DB office after 15-20 minutes. Accused Mahfuz was produced before him after police remand. He denied that he did not record the confession of accused Mahfuz on fulfillment of all legal requirements.

The confession of accused Md. Mahfuz is reproduced below:

আমি পূর্বে পিতা মাতার সাথে গাজীপুর বোর্ড বাজারে এক বিশিষ্ট বাসায় বসবাস করতাম। অনুমান ০১ বৎসর পূর্বে আমার ছোট মামা শরীফ তার স্ত্রী লামিয়াকে নিয়ে আমাদের বাসায় বেড়াতে আসে। ছোট মামা আমাদের বাসায় মামীকে রেখে ঢাকায় চলে আসে। সেই সুবাধে ছোট মামীর সাথে আমার ঘনিষ্ঠতা হয় এর কয়েক মাস পর আমি ঢাকায় চাকুরী নিয়ে আসি। পরবর্তীতে ছোট মামা আমাকে গ্যালাক্সী মোবাইল কোম্পানীতে ক্লিনারের চাকুরী দেয় এবং আমাকে তাদের বাসায় থাকতে দেয়। তখন ছোট মামীর সাথে আমার ঘনিষ্ঠতা আরো বেড়ে যায় এবং অনৈতিক সম্পর্ক গড়ে উঠে। উক্ত বাসায় বড় মামা শফিকুল সহ আমরা এক সাথে থাকতাম। একদিন সকাল বেলায় আমি বিছানায় শুয়ে থাকা অবস্থায় ছোট মামী আমাকে চুমু দেয়। পরবর্তীতে আমি তাকে চুমু দিতে গেলে আশেপাশের লোকজন দেখে ফেলে এবং বড় মামার কাছে অভিযোগ করে এরপর আমি আলাদা হয়ে যাই। এর অনুমান মাস খানেক পর আমার বাবা মা সহ মামারা তাদের পরিবার নিয়ে নারায়নগঞ্জ চলে আসি এবং বাবুরাইল এসে বাসা ভাড়া নেয়। পরবর্তীতে আমার বাবা-মা পৃথক হয়ে পাকা রোডে বাসা ভাড়া নেয়। পৃথক বাসায় বড় মামার পরিবার অর্থাৎ বড় মামি তাসলিমা, মেয়ে সুমাইয়া এবং ছেলে শান্ত এবং বড় মামির ভাই মোশারফ এক কক্ষে থাকতো অপর কক্ষে ছোট মামী

এবং তার স্ত্রী লামিয়া থাকতো। বড় মামায় ঢাকায় থাকতো। মামারা নারায়নগঞ্জ চলে আসার অনুমান ০১ মাস পর আমি ও নারায়নগঞ্জ চলে আসি। বড় মামির ভাই মোশারফ এর হোসিয়ারী ফ্যাক্টরীতে কর্মচারী হিসেবে আমাকে নিয়োগ দেওয়া হয়। নারায়নগঞ্জ চলে আসার পর ছোট মামীর সাথে আমার আবার যোগাযোগ শুরু হয়। ঘটনার অনুমান ১৪/১৫ দিন আগে মোশারফ মামা বেলা অনুমান ১২.০০-১২.৩০ মিনিটে ফোন করে আমাকে বাসায় আসতে বললে আমি বাসায় আসি। সেখানে রং মিস্ত্রী কাজ করছিল। আমাকে মিস্ত্রীদের সাহায্য করতে বলে মোশারফ মামা কারখানায় চলে যায়। তখন বাসায় ০২ জন রং মিস্ত্রী এবং ছোট মামী লামিয়া ছিল। বাসার লোক সবাই ঘরের বাইরে ছিল। তখন আমি মামীকে জিজ্ঞেস করি যে তিনি নিজে থেকে আমার সাথে অনৈতিক সম্পর্ক গড়ে তুললেও আমার নামে বাইরে অপপ্রচার করে দেন। যাই হোক সেই দিনও মামী আমার গালে চুমু দেয় এবং আমিও তাকে চুমু দেই। তিনি সেই দিন কোরআন শরীফ ছুয়ে আমার সাথে শারীরিক সম্পর্ক করবেন বলে কথা দেন। এরপর আমি কারখানায় চলে আসি। কিন্তু ছোট মামী আমাদের কথোপকথন রেকর্ড করে মামা এবং বড় মামীকে শুনান এবং আমার নামে বিচার দেন। ফলে বড় মামী আমাকে বাসায় আসতে নিষেধ করে। আমার মাথায় জেদ চাপে ছোট মামী কেন আমার বিষয়ে সবাইকে নালিশ দিলো আমার সাথে স্বেচ্ছায় অনৈতিক সম্পর্ক গড়ার পরও যাইহোক ঘটনার ০২ দিন আগে আমার ছোট মামা আমাদের কারখানায় আসে তার শার্ট চাপানোর

জন্য এবং আমাদের বলে যে, সে দেশের বাড়ীতে যাবে। ছোট মামা দেশের বাড়ীতে গেছে নিশ্চিত হয়ে আমি বিগত ১৫/০১/২০১৬ ইং শুক্রবার সন্ধ্যা অনুমান ০৬.০০ টায় মামাদের বাসায় যাই। দরজা নক করলে বড় মামার ছেলে শান্ত (১১) দরজা খুলে দেয়। আমি দেখি যে, ঘরের ভিতর আমার আপন ছোট ভাই মারুফ (০৯), আপন ছোট বোন সিনথিয়া (০৬) এবং শান্ত খেলা করছে। তখন আমি পকেট থেকে ৫০০/- নোট বের করে মাকে দেওয়ার জন্য মারুফের হাতে দেই এবং প্রত্যেককে ১০/- করে মোট ৩০/- টাকা দেই তখন তারা ০৩ জন খুশি হয়ে আমাদের বাসার দিকে চলে যায় এরপর আমি ছোট মামার রুমে যেয়ে খাটের নীচে লুকিয়ে থাকি। রাত্র অনুমান ০৮.০০-০৮.৩০ মিনিটে ছোট মামী রুমে এসে শোকেজ থেকে ফল বের করে খাটের উপর বসে খায় এবং বাকি ফল নিয়ে বড় মামার রুমে চলে যায়। অনুমান ১.০০/১.৩০ ঘন্টা পর মোশারফ মামা বাসায় আসে এবং বড় মামীর কাছে আমার বিষয়ে বদনাম করতে থাকে। এরপর বাসায় সবাই মিলে বড় মামার রুমে টিভি দেখতেছিল। রাত্র অনুমান ১.৩০ মিনিটে বড় মামী এই রুমে আসিয়া অর্থাৎ ছোট মামার রুমে আসিয়া খাটে বিছানা করে দেয়। এরপর মোশারফ মামা তার পরিহিত কাপড় পরিবর্তন করে বিছানায় শুয়ে পড়ে এবং মোবাইলে ভিডিও দেখছিল। রুমের লাইট অফ ছিল, তখন আমি অবাক হই যে, এই রুমে ছোট মামী একা শোয়ার কথা কিন্তু মোশারফ মামা এসে শুয়েছে। আর ছোট মামী বড় মামীর সাথে ভিন্ন রুমে শুইয়াছে। তখন আমি ঘর থেকে বের

হয় যাওয়ার জন্য মনস্থির করি। রাত্র অনুমান ২.৩০ মিনিটে খাটের নীচে থেকে বের হওয়ার চেষ্টাকালে খাটের সাথে মাথায় বাড়ি খাই এবং পকেটে থাকা ম্যাচের বাস্ক আওয়াজ করে উঠে। তখন মোশারফ মামা খাটের নীচে মোবাইল ফোনের টর্চ দিয়ে আমাকে দেখে ফেলে। আমি এত রাত্রে খাটের নীচে লুকিয়ে থাকার জন্য মোশারফ মামা আমাকে বকাবকি করে এবং এক পর্যায়ে তার সাথে খাটে শুতে বলে। তখন আমি তার সাথে যেয়ে শুই মোশারফ মামার মোবাইল ফোনের চার্জ শেষ হয়ে গেলে বড় মামীর রুমে ফোনে চার্জ দিতে যায় এবং বড় মামীকে আমার খাটের নীচে লুকিয়ে থাকার বিষয়ে জানায়। তখন আমি খুব ঘাবড়ে যাই। মোশারফ মামা মোবাইল ফোন চার্জ দিয়ে বিছানায় এসে শুয়ে পড়ে। এরপর আমি প্রস্রাব করতে যাই এবং বিছানায় আসার পূর্বে পাশের ঘর থেকে পুতা নিয়ে আসি যা বিছানার কাথার নিচে লুকিয়ে রাখি। মোশারফ মামা আধো আধো ঘুমিয়ে পড়লে আমি উক্ত পুতা দিয়ে জোরে তার মাথায় আঘাত করি। তখন সে চিৎকার দেওয়ার চেষ্টা করলে তার খুলে রাখা শার্ট দিয়ে তার মুখ চেপে ধরি এবং পুতা দিয়ে মাথায় আরেকটি আঘাত করি এরপর সবশেষে শার্ট দিয়ে তার গলায় প্যাচ দেই। মোশারফ মারা যায়। এরপর আমি বাথরুমে যেয়ে হাত পা ধুয়ে আসি। কি করবো বুঝতে পারতেছিলাম না। কারন বড় মামি জানে আমি মোশারফ মামার সাথে এই রুমে আছি। মোশারফ মামার বিছানার নীচে থাকা তার একটি সিগারেট খাই। বিছানার চাদর এবং কাথা দিয়ে মোশারফের দেহ ঢেকে দেই। রুমের ভিতর

পায়চারী করতে করতে ভোর হয়ে যায়। অনুমান ০৬.৩০ মিনিটে বড় মামি শান্তকে ঘুম থেকে উঠিয়ে কাপড় চোপড় পড়িয়ে স্কুলে পাঠিয়ে আবার নিজের রুমে যেয়ে ঘুমিয়ে পড়ে। সকাল অনুমান ৭.১০ মিনিটে পুতা হাতে নিয়ে পিছনে লুকিয়ে বড় মামীর দরজা নক করে বলি যে মোশাররফ মামা তাকে ডাকতেছে। তখন বড় মামি দরজা খুলে মোশাররফ যে রুমে গিয়ে ছিল উক্ত রুমের দরজায় যেয়ে মোশাররফকে ডাকতে থাকে। তখন আমি পুতা দিয়ে বড় মামির মাথায় আঘাত করি। তখন তিনি চিৎকার দিলে আমি পুতা দিয়ে আরেকটি আঘাত করলে বড় মামি মেঝেতে পড়ে যায়। তখন আমি কাপড় দিয়ে তার গলায় জোর করে প্যাচ দিলে বড় মামি মারা যায়। এরপর আমি ছোট মামি যে রুমে শোয়া ছিল অর্থাৎ বড় মামার রুমে যাই। আমার রুমে ঢুকান ১ মিনিটের মধ্যে ছোট মামি ঘুম থেকে উঠে পরে। আমার হাতে রক্তমাখা পুতা দেখে সে চিৎকার দেয় তখন আমি তার মাথায় পুতা দিয়ে আঘাত করি। তার মাথায় পুতা দিয়ে দুইবার আঘাত করি। এরপর তার গলায় ফাস দেওয়ার জন্য কাপড় খুজার সময় ছোট মামি উক্ত পুতা আমার দিকে ছুড়ে মারলে আমি সরে যাই এবং উক্ত পুতা ঘুমিয়ে থাকা সুমাইয়ার (০৭) (বড় মামার মেয়ে) মাথায় যেয়ে পড়ে এবং তার মাথা ফেটে যায়। তখন সুমাইয়া চিৎকার দিলে কাপড় দিয়ে তার গলায় ফাস দেই। ঠিক তখনই শান্ত বাইরে থেকে এসে দরজায় নক করে। আমি সামনে এসে দেখি যে, বড় মামি এমন ভাবে ফ্লোরে পড়ে আছে যে, দরজা খুললেই তাকে দেখা যাবে। তখন আমি তাকে হেচড়াইয়ে মোশাররফ যে রুমে

ছিল, সে রুমে নিয়ে রাখি এবং রক্তমাখা ফ্লোরের উপর একটি চাদর বিছায়ে দেই। এরপর আমি দরজা খুলে দিলে শান্ত বাসায় আসে এবং বড় মামীদের রুমে যায়। সেখানে রড এবং পরে থাকা লাশ দেখে সে চিৎকার দিয়ে উঠে। তখন আমি জোরে হাত দিয়ে তাকে ধাক্কা দিলে সে দেয়ালের সাথে বাড়ি খেয়ে অজ্ঞান হয়ে যায়। তখন আমি কাপড় দিয়ে তার গলায়ও ফাঁস দেই। এরপর পড়ে থাকা ছোট মামীর গলায় কাপড় দিয়ে বান দেই। তাকে টেনে সোজা করার সময় মূল দরজার তালা চাবি দেখতে পাই। তখন উক্ত তালা বাসার মূল দরজায় লাগিয়ে দেই। চাবিটি সিঁড়ির পাশে একটি গর্তের মত জায়গায় ছুরে ফেলে দেই। এরপর অনুমান সকালে ৭.৪০-৮.০০ টার মধ্যে আমি কারখানায় চলে আসি। সেখানে ভাগিনা ওরফে লাভলু আমাকে দরজা খুলে দেয়। এরপর লাভলুর থেকে সাবান নিয়ে কারখানার বাইরে থাকা গোসলখানায় যেয়ে গোসল করি। তখন উক্ত কারখানা যে বিন্ডিংয়ে অবস্থিত উক্ত বিন্ডিং এর মালিক ও আমাকে দেখতে পায়। যাই হোক গোসল শেষে কারখানার ভিতরে এসে আমি ঘুমিয়ে পড়ি। যাই হোক, এরপর পুলিশ আমাকে গ্রেফতার করে। এই আমার জবানবন্দি।

PW17 H.M. Shafiqul Islam was the Senior Judicial Magistrate on 21.01.2016 and he recorded statements of five (5) prosecution witnesses namely Maruf, Nazmul Islam, Noyon Hossain, Rasel and Lablu under Section 164 of the

Code of Criminal Procedure. The witness proved his signatures on above statements and the signatures of above witnesses on those statement under 164 of the Code of Criminal Procedure which were marked as Exhibit Nos.17 - 19(6) and 18 - 18(4) and 22 - 22(1) and 19 - 19(1) respectively. In cross examination he denied that he did not record above statements after fulfillment of legal requirements.

PW18 Dr. Md. Asaduzzaman stated that on 17.01.2016 at 1.45 P.M. a three members team comprising Dr. Md. Mofizuddin, Dr. Md. Tofazzal Hossain and himself performed post-mortem examination of the dead body of victim Taslima (28) and found following injuries:

- 1) Lacerated wound on frontal region of head
about $1\frac{1}{2}$ " X 1" X Skin Depth.
- 2) Lacerated wound on frontal region of head
about 1" X 1" X Scalp Depth.
- 3) Lacerated wound on left parieto-occipital
region of head $2\frac{1}{2}$ " X Scalp Depth.

- 4) Lacerated wound on right occipital region
 $1\frac{1}{2}$ " X $1\frac{1}{2}$ " X Scalp Depth.
- 5) Ecchymosis on left temporal region.
- 6) Retro-peritoneal hemorrhage on lower posterior abdominal wall.
- 7) Faint ligature mark on upper part of throat.

In their opinion death was due to haemorrhage and shock from above mentioned injuries Nos.1-6 which were antemortem and homicidal in nature.

He identified above post-mortem report and his signature on the same which were marked as exhibit Nos.23 - 23/1 respectively. He also identified the signature of the other two members of the Board which were marked as Exhibit Nos.23/2 and 23/3. In cross examination he denied that they prepared above post-mortem report without proper examination of the dead body.

PW18 Dr. Md. Asaduzzaman stated that as a member of three member team he held post-mortem examination of

victim Somaiya (4) on 17.01.2016 at 2.20 P.M. and found following injuries:

- 1) Extensive Ecchymosis on frontal region of head.
- 2) Extensive Ecchymosis on parieto occipital region of head.
- 3) Fracture both parietal bone.
- 4) Haematoma in right fronto parital region.
- 5) Faint ligature mark on mid throat.
- 6) Ecchymosis on left chaek.

In their opinion death was due to haemorrhage and shock from above mentioned Head injuries which antemortem and homicidal in nature.

The witness proved above post-mortem report and the signature on the same which were marked as Exhibit Nos.24-24/1. He also proved the signatures of other two members of above team which were marked as Exhibit Nos. 24/2 and 24/3 respectively. In cross examination he denied that they

prepared above post-mortem report without proper examination.

PW18 Dr. Md. Asaduzzaman stated that he also held post-mortem examination of the dead body of Mosharaf (22) on 17.01.2016 at 02.35 P.M. and found following injuries:

- 1) Continuous horizontal ligature mark at the level of mid throat.
- 2) Lacerated wound on mid forehead about $1\frac{1}{2}$ " X $1\frac{1}{2}$ " X skin depth.
- 3) Lacerated wound on left side of forehead about 1" X $1\frac{1}{2}$ " X skin depth.
- 4) Extensive Ecchymosis on right parietal region of head.
- 5) Extensive Echymosis on left parietal temporal region of head.
- 6) Ecchymosis on left occipital region.
- 7) Blood clot in right parietal and occipital region of head.

In their opinion death was due to haemorrhage and shock from above mentioned Head injuries and asphyxia resulting from strangulation which was ante-mortem and homicidal in nature.

He proved above post-mortem report and his signature on the same which were marked as Exhibit Nos.25-25/1 respectively. The witness also proved the signatures of other two members of above team which were marked as Exhibit No.25/2 and 25/3 respectively. In cross examination he denied that they prepared above post-mortem report without proper examination.

Above witness also held post-mortem examination of victim Shanto (10) and found following injuries:

- 1) Extensive Ecchymosis on Occipital Region of head with blood clot in occipital region brain.
- 2) Faint ligature mark in upper part of throat.

In their opinion death was due to haemorrhage and shock from above mentioned head injuries which was ante-mortem and homicidal in nature.

The witness proved above post-mortem report and his signature on the same which was marked as Exhibit Nos.26 - 26/1 respectively. He also proved the signatures of other two members of above team which were marked as Exhibit Nos.26/2 and 26/3. In cross examination he denied that they prepared about inquest report without proper examination of the dead body.

Above witness also performed post-mortem of the dead body of the victim Lamiya (19) and found following injuries:

- 1) Lacerated wound thrice in number on right side of forehead each about $\frac{1}{2}$ " X $\frac{1}{2}$ " X scalp depth.
- 2) Lacerated wound on occipital region of head about 2" X $1\frac{1}{2}$ " X Scalp depth.

- 3) Lacerated wound left side of four head
about 1" X $\frac{1}{2}$ " X Scalp depth.
- 4) Blood clot in left parietal frontal and
occipital region of brain.

In their opinion death was due to
haemorrhage and shock from above
mentioned injuries which was antemortem
and homicidal in nature.

The witness proved above post-mortem report and his
signature on the same which were marked as Exhibit Nos.27 –
27/1 respectively. He also identified the signatures of other
two members of the team which were marked as Exhibit
Nos.27/2 and 27/3 respectively. In cross examination he
denied that they prepared above inquest report without
proper examination of the dead body.

PW19 Dr. Md. Tofazzal Hossain is a member of the three
member team who performed post-mortem examination of
the dead bodies of victim Taslima, Shanto, Somiya, Mosharaf
and Lamiya. This witness proved his signatures on above
mentioned five post-mort reports of above victims which were

marked as Exhibit Nos.23/2, 24/2, 25/2, 26/2 and 27/2 respectively. In cross examination he denied that they prepared above post-mortem reports without proper examination of the dead bodies.

PW20 Dr. Md. Mofiz Uddin is another member of above mentioned three member post-mortem examination team who stated that they performed post-mortem examination of the dead bodies of Taslima, Shanto, Sumaiya, Mosharaf and Lamiya and he gave signatures in above five post-mortem reports. The witness proved his signatures on above five post-mortem reports which were marked as Exhibit Nos.23/3, 24/3, 25/3, 26/3 and 27/3 respectively. In cross examination he denied that they prepared above post-mortem reports without proper examination of the dead bodies.

PW21 Amena Begum is the mother of the informant who stated that on 16.01.2016 she came from village home to the occurrence flat and found the same was locked from outside and she remained seated in front of above locked flat from 6.30 P.M. for about 2.00/2.30 hours. At about 7.30 P.M. PW 9 Sharif and accused Mahfuz alongwith others came to the

occurrence flat and broke the lock. She entered into the occurrence flat and saw three dead bodies in one room and two dead bodies in the other. She subsequently heard that accused Mahfuz had committed above murders. The witness identified accused Mahfuz in the dock. In cross examination she stated that she lives in Mymensingh and she did not visit the occurrence flat before. PW9 Sharif went to bring her to Dhaka from Mymensingh. She denied that accused Mahfuz did not commit above murders.

PW22 Md. Hamidul Islam, a Sub-Inspector of Police prepared inquest reports of the dead bodies of 5 (five) victims Taslima, Shanto, Sumaiya, Mosharaf and Lamiya and performed partial investigation of this case. He stated that on 16.01.2016 he rushed to the occurrence place and held inquest of the dead body of victim Sumaiya (4), Lamiya (19), Shanto (10), Taslima (28) and Mosharaf (22) and forwarded above dead bodies for post-mortem examination through Constable 387 Dulal Miah. He also seized food items from the occurrence flat by a seizure list and forward above alamats for chemical

examination. PW1 Shariful lodged ejahar of this case and the investigation of the case was assigned to him.

In course of investigation he visited the place of occurrence and prepared a sketch map of the same along with an index thereof and seized alamats. He recorded the statements of 7 prosecution witnesses under Section 161 of the Code of Criminal Procedure. The witness proved five inquest reports of above victims and his signatures on those documents which were marked as Exhibit Nos.2, 3, 4, 5, 6, 2(5), 3(5), 4(5), 5(5) and 6(5) respectively. The witness also proved the chalan and his signature on the same which were marked as Exhibit Nos.11-15 and 11(2) - 16(2). He also proved three seizure lists and his signatures on above documents which were marked as Exhibit Nos.8, 9, 10, 8(4), 9(4) and 10(4) respectively. The witness lastly proved the sketch map and index of the occurrence place and his signatures on those documents which were marked as Exhibit Nos.28 - 28/1 and 29/1. In cross examination the witness stated that he prepared inquest of deceased Sumaiya on 16.01.2016 at 22.05 hours. He did not mention the head injury of above victim. He prepared

inquest report before lodging of the ejahar. In the inquest report of deceased Shanto the time and date has been mentioned. He did not find any mark of injury on the head or any other part of victim Shanto excepting a black scar on the neck. Inquest of victim Taslima was prepared at 22.05 hours but there is no mention as to who prepared above inquest. He denied that he did not perform investigation of the case properly.

PW23 Md. Abul Khair an Inspector of Detective Branch is the Second Investigating officer of this case. He stated that he arrested suspected accused Nazma and interrogated her extensively. He also arrested accused Mahfuz and in course of investigation he confessed to have committed murders of above five victims and after commission of above murders he locked the door of the occurrence flat from outside and threw the key in the water tank and at his showing above key was recovered and seized. He sent the viscera of above five victims for chemical examination and collected reports. He seized seven types of alamats by two separate seizure lists. The witness proved above two seizure lists and his signatures on

those which were marked as Exhibit Nos.7, 16, 7(3) and 16(3) respectively. He recorded the statement of five witnesses under Section 161 of the Code of Criminal procedure. In above investigation offence punishable under Sections 302 and 201 of the Penal Code having proved against accused Md. Mahfuz he submitted charge sheet No.112 dated 05.04.2016 against him and no offence having prima facie proved against suspect Nazma Begum and her husband Shahjahan he did not sent them for trial. In cross examination he stated that he did not get any eye witness of the occurrence. He did not see blood stain on the “Shil Pata-Putta” (পোতা) on 21.01.2016. He denied that he obtained confession of accused Mahfuz after subjecting him to physical assaults and above confession was not true and he submitted a false charge sheet without proper investigation of the case.

Above is all about the evidence oral and documentary adduced by the prosecution to bring home the charge leveled against accused Md. Mahfuz under Section 302 of the Penal Code.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State submits that the informant is the maternal uncle of accused Mahfuz. In the ejahar no name of any accused was mentioned but in the body of the ejahar the informant had suspected accused Mahfuz as the probable murderer and stated that accused Mahfuz subjected victim Lamiya to repeated sexual harassment while the family was living in Dhaka. Lamiya complained against above objectionable behavior of accused Mahfuz to PW1 Shafiqul and he was asked not to visit their residence and due to above cause the informant shifted his family from Dhaka to the occurrence flat in Narayangonj although he is doing his job at Dhaka. The prosecution has succeeded to prove above cause of the commission of murder of five victims including Lamiya by consistent evidence of PW1 Shafiqul Islam, PW23 Abul Khair and the confession of accused Mahfuz. The defence did not cross examine PW1 Shafiqul or PW23 Abul Khair as to above unethical sexual exploitation of Lamiya by accused Mahfuz and complaint of Lamiya to PW1 Shafiqul and others about above unacceptable behavior of accused Mahfuz and shifting

of the family of the informant to Narayangonj. It has been stated by PW1 Shafiq, PW9 Sharif and PW7 Morsheda that on 16.01.2016 at 8.00 P.M. they found the occurrence flat locked from the outside and due to unavailability of the key the lock was broken and then the occurrence of murders became known to all. On the basis of confession of accused Mahfuz and at his showing above key was retrieved and seized from the water tank. Similarly on the basis of confession of accused Mahfuz the blunt weapon namely “Pata Puta” used in the commission of above five murders was recovered and seized from occurrence flat. Above facts has not been denied by the defence by way of cross examination of the relevant prosecution witnesses.

PW18 Dr. Asaduzzaman, PW19 Dr. Tofazzal and PW20 Dr. Mofiz performed post-mortem examination of above five dead bodies and they broadly mentioned that the causes of death were lacerated injuries on the head and forehead as well as strangulation by fastening the neck by cloth. Above witnesses were also not cross examined by the defence as to the number, location and nature of injuries found on the

person of each of above five victims. As such the prosecution has succeeded prove by oral evidence of competent prosecution witnesses that five victims namely Taslima, Shanto, Somiya, Mosharaf and Lamiya were murdered in the occurrence flat any time during 10.30 of 15.01.2016 to 7.00 P.M. of 16.01.2016 by causing head injuries by blunt weapon and strangulation. In this case of brutal murder of five persons including two women and two children accused Mahfuz has made a confession to PW16 Saiduzzaman Sharif under Section 164 of the Code of Criminal Procedure, 1898. Above accused has confessed confessing to have murdered all above five victims by repeated blows with “Pata Puta” on the head and forehead and by strangulation. Each and every material facts of above confession have been corroborated by the oral evidence of competent witnesses as well as by the circumstantial and documentary evidence.

On consideration of above circumstantial, oral and documentary evidence the learned Session Judge has rightly and lawfully convicted accused Md. Mahfuz under Section 302 of the Penal Code which calls for no interference.

As such the Death Reference submitted by the learned Session Judge, Narayangonj deserves to be accepted and the Criminal Appeal preferred by Md. Mahfuz is liable to be dismissed, concluded the learned Deputy Attorney General.

On the other hand Mr. Mohammad Shishir Manir, learned Advocate for convict appellant submits that in this case there is no eye witness. The confession of accused Mahfuz was obtained during his police remand and through torture. Above confession was neither made voluntarily nor the same was true. In above confession accused Mahfuz has stated that he entered into the occurrence flat at about 6.00 o'clock in the afternoon and straight went beneath the cot in Lamiya's bed room. Since both the bed rooms could be seen from the kitchen and entrance of the apartment can be viewed from both the bed rooms it is not understandable as to how accused could avoid view of the occupants of above flat. There is no mention that at that particular time no resident of above flat was present in the flat. The learned Advocate further submits that accused Mahfuz stated that he struck "Pata Puta" (পাটাপোতা) blow on the head of victim Taslima when she was

pushing the door of the room of victim Lamiya. So, obviously his blows struck the back side of the head of Taslima. But the post-mortem report shows injury on the front side of her head. In the post-mortem report there is specific mention of kidney fracture of victim Taslima. But in his confession accused Mahfuz did not confess to have struck any blow on her above organ. The inquest report as to the size, position and nature of the injuries of all other 4 victims also do not corroborate with the mode and manner of infliction of পাটাপোতা blows as has been confessed by accused Mahfuz under Section 164 of the Code of Criminal Procedure. The learned Advocate repeatedly stated that পাটাপোতা is the only weapon used for commission of murders of five victims which was recovered and seized on 21.01.2016. But PW22 Hamidul the Investigating Officer has admitted that he did not find any strain of blood on above পাটাপোতা. Above evidence shows that the seized পাটাপোতা which was allegedly recovered at the showing of accused Mahfuz was not at all used in the commission of the above murders. As far as victim Shanto is concerned at the very outset of his confession accused Mahfuz stated that Shanto along with his

brother Maruf and sister Sinthia went to his house. There is no mention that at any point of time victim Shanto returned back to the occurrence flat. Moreover, the Head teacher of the School of victim Shanto stated in a report that Shanto did not go to school in the morning of the day of occurrence. PW12 Nazmul who is a labor of the factory of victim Mosharaf stated in cross examination that when they were denied entry into the occurrence flat they all returned to their respective mess which shows that all the labors of the factory of Mosharaf were not living in a single mess in above factory. In view of above material contradictions in the confession and evidence of important prosecution witnesses it must be held that the prosecution has failed to prove the charge leveled against accused Mahfuz under Section 302 of the Penal Code beyond reasonable doubt. But the learned Session Judge has failed to appreciate above materials on record properly and most illegally convicted accused Mahfuz under Section 302 of the Penal Code which is not tenable in law.

Ms. Shana Sayed, learned state appointed Advocate for convict appellant Md. Mahfuz adopted above submissions of

the learned Advocate Mr. Mohammad Shishir Manir for appellant Md. Mahfuz.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record including the FIR, charge sheet, seizure list, inquest reports, post-mortem reports and confession of accused Md. Mahfuz made under Section 164 of the Code of Criminal Procedure.

At the very outset it may mentioned that in this case of brutal murder of five persons including two women and two children namely Taslima, Lamiya, Shanto, Sumaiya and Mosharaf there is no eye witness who saw above occurrence of brutal murders. PW1 Shafiqul Islam is the informant and husband of victim Taslima and father of victim Shanto and Sumaiya. He has stated that he rented above flat and besides his family his younger brother PW9 Sharif alongwith his wife victim Lamiya used to reside in above flat. PW10 Ismail who is the owner of above fifth storied building and PW12 Nazmul, PW3 Touhid and PW2 Taslim who are the tenants of other flats of above building all gave consistence and mutually

supportive evidence stating that PW1 Shafiqul and his family members used to live in the occurrence flat.

PW22 Sub-Inspector Hamidul Islam prepared inquest report of the dead bodies of five victims namely Sumaiya, Lamiya, Shanto, Taslima and Mosharaf. PW2 Taslim, PW10 Ismail, PW11 Dulal Miah, PW3 Touhid, PW4 Roni, PW9 Sharif and PW1 Shafiqul are the witnesses of the five inquest reports. All above prosecution witnesses have consistently stated that dead body of victim Mosharaf was found on the cot and that of victim Taslima on the floor of the room of PW9 Sharif and there were lacerated marks of injuries on the head and forehead and blackis marks of strangulation on the neck of above two dead bodies. They found the dead bodies of victim Lamiya, Shanto and Somiya in the bed room of PW1 Shafiqul. The saw lacerated injuries on head and marks of strangulation on the throat of victim Lamiya and Sumiya.

PW18 Dr. Asaduzzaman, PW19 Dr. Tofazzol and PW20 Dr. Mofiz Uddin performed post-mortem examination of above dead bodies of five victims namely Sumaiya (4), Lamiya (19), Shanto (10), Taslima (28) and Mosharaf (22).

They found following injuries on the person of Taslima (28):

- 1) Lacerated wound on frontal region of head about $1\frac{1}{2}$ " X 1" X Skin Depth.
- 2) Lacerated wound on frontal region of head about 1" X 1" X Scalp Depth.
- 3) Lacerated wound on left parieto-occipital region of head 2" X $\frac{1}{2}$ " X Scalp Depth.
- 4) Lacerated wound on right occipital region $1\frac{1}{2}$ " X $1\frac{1}{2}$ " X Scalp Depth.
- 5) Ecchymosis on left temporal region.
- 6) Retro-peritoneal hemorrhage on lower posterior abdominal wall.
- 7) Faint ligature mark on upper part of throat.

In their opinion death was due to haemorrhage and shock from above mentioned injuries Nos.1-6 which were Antemortem and homicidal in nature.

On the dead bodies of Sumiaya (4) they found following injuries:

- 1) Extensive Ecchymosis on frontal region of head.
- 2) Extensive Ecchymosis on parieto-occipital region of head.
- 3) Fracture both parietal bone.
- 4) Haematoma in right fronto parital region.
- 5) 5) Faint ligature mark on mid throat.
- 6) Ecchymosis on left chaek.

In their opinion death was due to haemorrhage and shock from above mentioned Head injuries which were antemortem and homicidal in nature.

On the person of victim Lamiya (19) they found following injuries:

- 1) Lacerated wound thrice in number on right side of forehead each about $\frac{1}{2}$ " X $\frac{1}{2}$ " X scalp depth.
- 2) Lacerated wound on occipital region of head about 2" X $1\frac{1}{2}$ " X Scalp depth.

- 3) Lacerated wound left side of four head
about $1'' \times \frac{1}{2}''$ X Scalp depth.
- 4) Blood clot in left parietal frontal and
occipital region of brain.

In their opinion death was due to haemorrhage and shock from above mentioned injuries which were antemortem and Homicidal in nature.

On the person of victim Mosharaf (22) they found following injuries:

- 1) Continuous horizontal ligature mark at
the level of mid throat.
- 2) Lacerated wound on throat, mid
forehead about $1\frac{1}{2}'' \times 1\frac{1}{2}''$ X skin
depth.
- 3) Lacerated wound on left side of
forehead about $1'' \times 1\frac{1}{2}''$ X skin depth.
- 4) Extensive Ecchymosis on right parietal
region of head.

- 5) Extensive Echymosis on left parietal temporal region of head.
- 6) Ecchymosis on left occipital region.
- 7) Blood clot in right parietal and occipital region of head.

In their opinion death was due to haemorrhage and shock from above mentioned Head injuries and asphyxia resulting from strangulation which was Ante-mortem and Homicidal in nature.

On the person of victim Shanto (10) they found following injuries:

- 1) Extensive Ecchymosis on Occipital Region of head with blood clot in occipital region brain.
- 2) Faint ligature mark in upper part of the throat.

In their opinion death was due to haemorrhage and shock from above mentioned head injuries which was Ante-mortem and Homicidal in nature.

The number, location and nature of the injuries and cause of death as mentioned in the inquest report (Exhibit Nos.2-6) and post-mortem report (Exhibit Nos.23-27 series) are mutually corroborative. It was broadly stated in above reports that the deaths of five victim was caused by head or forehead injuries caused by blunt weapon and strangulation PW22 Hamidul, PW18 Dr. Asaduzzaman, PW19 Dr. Tofazzal and PW20 Dr. Mofiz were not cross examined by the defence as to number, nature, location and extant of the injuries they found as the dead bodies of five victims. As such the prosecution has succeeded to prove by legal evidence that five victims, namely Mosharaf, Taslima, Lamiya, Somiya and Shanto were murdered by blunt weapon strikes causing lacerated injuries on head and forehead and strangulation by fastening the throat with cloth.

PW22 Hamidul, PW1 Shafiqul, PW7 Morsheda and PW9 Sharif have consistently stated in their respective evidence that PW9 Sharif went to his village home on 14.01.2016 for bring his mother PW8 Morsheda to the occurrence flat and he returned on 16.01.2016 at about 8.00 P.M. but found the door

of the occurrence flat locked from outside. PW1 Shafiqul has stated that the occurrence took place any time between 10.30 of 15.01.2016 to 8.20 P.M. of 16.01.2016. PW9 Sharif, PW7 Morsheda, PW1 Shafiqul and accused Mahfuz entered into the occurrence flat by breaking the lock at 8.30 P.M. on 16.01.2016 and discovered the dead bodies of five victims namely Sumaiya, Lamiya, Shanto, Taslima and Mosharaf with visible marks of injuries on head, forehead and throat. The defence did not dispute above time of the occurrence of the murders by way of cross examination of PW1 Shafiqul, PW9 Sharif and PW7 Morsheda or by putting a suggestion to them that during above period above murders were not committed. On consideration of above evidence on record we hold that the prosecution has succeeded to prove by legal evidence beyond reasonable doubt the place, date and time and manner of the occurrence of murders of five victims that during any time between 10.30 of 15.01.2016 to 8.20 P.M. of 16.01.2016 victim Taslima, Mosharaf, Lamiya, Sumaiya and Shanto were murdered by causing lacerated injuries on head and forehead by blunt weapon and by strangulation by cloth and the dead

body of victim Mosharaf was found on the cot and dead body of Taslima was lying on the floor of the room of PW9 Sharif and other three dead bodies were lying on the floor of the room of PW1 Shafiqul.

PW1 Shafiqul is the maternal uncle of accused Mahfuz and he lodged ejahar of this case on 17.01.2016 at 8.15 A.M. In the ejahar he did not mention the name of any person as an accused of above gruesome murders of five persons. He merely stated the names of the persons he suspected as the probable murderers and in above category he lastly stated the name of his nephew Mahfuz. He mentioned that accused Mahfuz subjected victim Lamiya to sexual harassments on several occasions in his Dhaka home and victim Lamiya complained of above objectionable behavior of accused Mahfuz to the informant. Accused Mahfuz was prohibited from visiting above house of the informant but accused Mahfuz disobeyed above prohibition and continued sexual harassment to Lamiya. Due to above objectionable behaviour of accused Mahfuz PW1 Shafiqul shifted his family from Dhaka to Narayangonj. But Mahfuz also shifted to

Narayangonj, took a job in the factory of victim Mosharaf and continued sexual harassments to Lamiya during absence of PW9 Sharif. Above statement of the ejahar has been fully reproduced by PW1 Shofiqul and PW23 Abul Khair in their evidence in Court. PW1 Shofiqul and PW23 Abul Khair were subjected to cross examination by the defence but above parts of their evidence were not subjected to cross examination nor any suggestion was put to PW1 Shafiqul or PW23 Abul Khair that above facts were not true or accused Mahfuz never subjected victim Lamiya to sexual harassments. As such the motive of above murders of five victims as alleged by the prosecution the determination of accused Mahfuz to take revenge for refusal of victim Lamiya to his sexual advances and the obstructions created by PW1 Shafiqul and his wife victim Taslima has been proved.

Accused Mahfuz has made a confession to PW16 Judicial Magistrate Saiduzzaman Sharif on 21.01.2016 under Section 164 of the Code of Criminal procedure. PW16 Saiduzzaman has stated in his evidence that he recorded above confession of accused Mahfuz on compliance of all legal

requirements. Above witness was cross examined by the defence extensively but to no avail. His evidence remained unshaken and consistent. We are unable to find any material irregularity or illegality in the recording of above confession of accused Mahfuz under Section 164 of the Code of Criminal Procedure.

It is well settled that an order of conviction and sentence can be recorded solely on the basis of a confession made by an accused before a Judicial Magistrate under Section 164 of the Code of Criminal Procedure if the confession was made voluntarily and the same was proved to be true. The voluntariness of a confession may be proved by the evidence of the Judicial Magistrate who recorded the confession to show that above confession was recorded on compliance of all legal requirements as provided in Sections 164 and 364 of the Code of Criminal Procedure. PW16 Saifuzzaman Sharif has succeeded to prove by his consistent and credence inspiring evidence that accused Mahfuz made above confession voluntarily. Now let us proceed to analyze above confession of accused Mahfuz and compare the same with other legal

evidence on record and circumstances of the case to determine if above confession was true.

Above confession of accused Mahfuz is lengthy and detailed in each and every important aspects of above murders and provides a pen picture as to how he alone committed the murders of as many as five persons including two women and children one after another.

At the very outset he has mentioned the motive of commission of above murders. He stated that about one year ago he established an unethical intimate relation with victim Lamiya who is the wife of PW9 Sharif during his stay in their home at Dhaka. But Lamiya made a complaint against him to PW1 Shafiqul. As such he separated himself from Lamiya and PW1 Shafiqul shifted his family to Narayangonj. After about a month he came to Narayangon and took a job in the factory of victim Mosharaf and reestablished his relation with Lamiya. Above part of the confession of accused Mahfuz has been fully corroborated by the evidence of by PW1 Shafiqul and PW23 Abul Khair, the Investigation Officer as mentioned above.

As to the selection of occurrence date and time, i.e, 15.01.2016 Friday evening to proceed to the occurrence flat to implement his revenge mission accused Mahfuz stated in above confession that about two days before date of occurrence PW9 Shqfique came to their factory for squeezing his shirt and disclosed that he would go to village home and after being confirmed that PW9 Shqfique had left Narayangonj for village home he went to the occurrence flat on 15.01.2016 Friday at 6.00 P.M. Above part of the confession has been supported by mutually corroborative evidence of PW9 Sharif, PW7 Morsheda and PW1 Shafiqul who stated that PW9 Sharif went to village home on 14.01.2016 leaving his wife victim Lamiya in the occurrence flat and returned back on 16.01.2016 at 8.00 P.M. as mentioned above.

Accused Mahfuz He further confessed that victim Mosharaf had a hosiery factory in Narayangonj and he obtained a job in above factory and shifted to Naryanganj from Dhaka and he used to visit the occurrence flat frequently. Above facts have been proved by the evidence of PW1 Shafiqul, PW9 Sharif and PW21 Amena.

Accused Mahfuz further confessed that he used to work in the factory of victim Mosharaf and after commission of above murders he returned to above factory, took a bath, breakfast and slept. Above confession shows that accused Mahfuz used to live in above factory but in the Friday night he was absent there for executing his killing mission in the occurrence flat.

Above part of the confession has been proved by the evidence of PW13 Saiful, PW14 Nayon and PW15 Lablu. Above witnesses have stated that accused Mahfuz was not present in above factory in the Friday night. They also have described a series of unusual subsequent conducts of accused Mahfuz. The defence did not cross examine PW14 Nayon.

In above confession accused Mahfuz has repeatedly stated that more than once victim Lamiya disclosed his unethical sexual approaches to others members of the family including PW1 Shafiqul. Above part of the confession has been corroborated by the evidence of PW1 Shafiqul and PW23 Abul Khair as stated above.

In above confession accused Mahfuz has stated that he was surprised to see that in the room of PW9 Sharif instead of his wife victim Lamiya victim Mosharaf slept and Lamiya slept with victim Taslima in the room of PW1 Shafiqul. Since PW9 Sharif was not present in Dhaka it was usual that victim Lamiya would sleep with her sister-in-law victim Taslima and her children so that victim Mosharaf, brother of victim Taslima could sleep alone comfortably in her room. The recovery of the dead body of victim Mosharaf from the cot of victim Lamiya proves above part of the confession.

Accused Mahfuz has further confessed that after commission of murders of five victims he locked the door of the occurrence flat from outside. Above part of the confession has been proved by the mutually corroborative evidence of PW1 Shafiqul, PW21 Amena and PW9 Sharif. All above witnesses have stated that they found the occurrence flat locked from outside.

Accused Mahfuz further confessed that he threw the key of the flat in a ditch beside the stair case of the occurrence building. Above part of the confessions was proved by

recovery of above key from the water tank of the occurrence building by PW23 Abul Khair in presence of witnesses (Exhibit No.7 and material Exhibit No.XVI).

As to the weapon used in above murders accused Mahfuz stated in confession that he committed above murders of five persons by striking Putta (পোতা) blows on head and foreheads and strangulation with salwar or shirt, scarf or sweater respectively. Above Salwar, full shirt, sweater and scarf were seized by P.W.22 Hamidul on 16.01.2016 and marked as Exhibit No.9 and Material Exhibit Nos.I, II, III and IV respectively. PW22 Hamidul found the salwar was fastened with the neck of victim Taslima, white color shirt was tied with the neck of victim Mosharaf, printed scarf was tied with the neck of Lamiya and the sweater was fastened with the neck of victim Shanto as was described by accused Mahfuz in above confession.

On the basis of confession and at the showing of accused Mahfuz the Putta (পোতা) which was the main tool for commission of above murders was seized by PW23 Abul Khair which was marked as Exhibit No.7 and Material Exhibit

No.II. PW1 Shafiqul and PW12 Nazmul who witnessed above recovery and seizure of the key and the Putta (পোতা) gave mutually supportive and credence inspiring evidence. As such, above part of the confession of accused Mahfuz has been corroborated by other evidence.

It is true that in cross examination PW23 Abul Khair has stated that he did not find blood stain on above Putta (পোতা). The Putta (পোতা) is made of hard rock and it was recovered on 20.01.2014 after about four days of the occurrence of murders. As such blood stain might be removed in any way and in above view of the matter we are unable to disbelieve the evidence of above mentioned competent prosecution witnesses and the confession of accused Mahfuz.

Accused Mahfuz has confessed to have committed murder of victim Mosharaf inside the room of PW9 Sharif and although he committed murder of victim Taslima at the door of above room her dead body was pushed inside above room. As far as the commission of murders of other three victims are concerned he stated that he committed murders of Somiya and Lamiya inside of the room of PW1 Shafiqul and although

victim Shanto was murdered outside of above room his dead body was put inside the above room. Above part of the confession as to the place of murder and location of the five dead bodies have been proved by the evidence of PW1 Shafiqul, PW9 Sharif and PW22 Sub-Inspector Hamidul.

As far as the location, nature and size of the injuries are concerned accused Mahfuz confessed to have struck repeated Putta (পোতা) blows on the head and forehead of each of the four victims namely Mosharaf, Taslima, Lamiya and Sumaiya and tied their throat by cloth. As far as victim Shanto is concerned accused Mahfuz pushed him forcefully with the wall and he lost consciousness. He did not mention which part of the body was struck with the wall. Head and forehead are soft and sensitive organs of the human body. Repeated Putta blows caused several injuries on the head and surrounding areas. In the post-mortem reports of above mentioned four victims there are marks of lacerated injuries on head and surrounding areas caused by blunt weapon. A Putta (পোতা) and a concrete wall both are blunt weapons and blows with such a hard blunt weapon may cause lacerated injuries. Above part of the

confession has been proved by the evidence of PW18 Dr. Md. Asaduzzaman, PW19 Dr. Md. Tofazzal Hossain and PW20 Dr. Md. Mofiz Uddin and five post-mortem reports of the dead body of above victims (Exhibit Nos.23, 24, 25, 26 and 27).

On consideration of above facts and circumstances and evidence on record we hold that the confession made by accused Mahfuz was fully corroborated by above mentioned circumstantial, documentary and oral evidence of competent witnesses and above confession of accused Mahfuz was proved to be true. The prosecution having succeeded to prove by above legal evidence the charge framed against accused Mahfuz under Section 302 of the Penal Code, 1860 the learned Session Judge on correct appreciation of above facts and laws and materials on record has rightly convicted accused Md. Mahfuz under Section 302 of the Penal Code, 1860 which calls for no interference.

As far as the sentence of the death is concerned learned Deputy Attorney General submits that this is a preplanned and cool blooded murder killing of five persons including two women and two children without any provocation or

resistance. Accused Mahfuz tried to establish a sexual relation with his aunty Lamiya who refused to do so and reported the matter to PW1 Shafiqul. The accused started his killing mission with victim Mosharaf who was his employer and who shared bed with him a few hours ago. He murdered victim Somaiya and Shanto two children brutally without any at all cause. Above conduct of accused Mahfuz clearly show that he had an intention to commit murders of all or any resident of the flat. On consideration of above facts the learned Session Judge has rightly inflicted death penalty against accused Mahfuz under Section 302 of the Penal Code which calls for no interference.

On the other hand Mr. Mohammad Shishir Manir, learned Advocate for the convict appellant Mahfuz submits that at the time of the occurrence the age of victim Md. Mahfuz was 19 years. He had suffered an emotional break down with victim Lamiya and due to above psychological break down he might have suddenly committed above murders at the spur of the moment without any intention. This is not a case of cool blooded and preplanned murder.

Accused Mahfuz went to the occurrence house unarmed to settle his relation with victim Lamiya but unfortunately he was caught by Mosharaf who humiliated him and the accused became unsettled mentally.

The petitioner does not have any past record of commission of any offence. His existence is not a threat to the civilized society and he has been languishing in the death cell for more than five years. On consideration of above mitigating circumstances and for the ends of justice the sentence of death imposed upon the condemned accused Md. Mahfuz may be commuted to imprisonment for life, concluded the learned Advocate.

We have considered the submissions made by the learned Advocates for respective parties, materials on record and the manner and mode of commissions of murders of five persons including two children and two women and the extent of brutality and cruelty exhibited by accused Mahfuz in course of commission of above murders.

We did not find that Accused Mahfuz had any romantic relation with victim Lamiya. Had he truly been related with

Lamiya she could settle the issue when she alone came into the occurrence room, sat on the cot and ate fruits. Victim Lamiya made repeated complaint against accused Mahfuz and PW1 Shqfiqul had to shift his family to Narayangonj to protect them from accused Mahfuz. Victim Mosharaf was the employer of accused Mahfuz and he caught him beneath the cot in the middle of the night. Victim Mosharaf did not rebuke him nor subjected to beatings or drove him out of the occurrence flat but gave accused Mahfuz a space in his bed. Accused Mahfuz committed murder of victim Mosharaf without any provocation, instigation or resistance. Thereafter he committed murders one after another of the remaining four victims two children and two women with highest degree of cruelty and brutality. This is a case of preplanned and cool blooded murders of five individuals who were closely related with accused Mahfuz. Above facts show that accused Mahfuz entered into the occurrence flat to murder all or every resident. It is true that at the time of commission of above five murders the age of accused Mahfuz was 19 years but that alone cannot be accepted as a sufficient mitigating factor for

reduction of the sentence. In above view of the materials on record we are unable to find any substance in above submissions of the learned Advocate for accused Mahfuz that accused Mahfuz deserves a reduction in the sentence imposed against him by the learned Session Judge.

On consideration of above facts and circumstances of the case and materials on record we hold that the sentence of death imposed against accused Mahfuz was proportionate and lawful and the same interference. As such the Death Reference submitted by the learned Sessions Judge, Narayangonj for confirmation of sentence of death imposed against accused Md. Mahfuz in Session Case No.1001 of 2016 arising out of Naryangonj Sadar Model P.S. Case No. 22 dated 17.01.2016 corresponding to G.R. Case No.22 of 2016 under Section 302 of the Penal Code, 1860 deserves to be accepted and the Criminal Appeal preferred by accused Md. Mahfuz being devoid of any substance is liable to be dismissed.

In the result, Death Reference No.113 of 2017 submitted by the learned Session Judge, Narayangonj for confirmation of sentence of death imposed against accused Md. Mahfuz in

Session Case No.1001 of 2016 arising out of Naryangonj Sadar Model P.S. Case No. 22 dated 17.01.2016 corresponding to G.R. Case No.22 of 2016 under Section 302 of the Penal Code, 1860 is hereby accepted and above sentence of death is confirmed and Criminal Appeal No.8440 of 2023 preferred by accused Md. Mahfuz is hereby dismissed.

Let the lower court's records along with a copy of this judgment be transmitted down at once.

Md. Aminul Islam, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*